

02:00 **PM LINE 2**

22-CIV-03747

HH HOLDING GLOBAL CO., LTD VS. DAN F. SILVEIRA

HH HOLDING GLOBAL CO., LTD
DAN F. SILVEIRA

ELISE M. BALGLEY
MARK K. SLATER

Defense Motion for Entry of Judgment (CCP 664.6) or in the Alternative, Request to Set for Trial

TENTATIVE RULING:

The Motion to Enter Judgment Pursuant to Code of Civil Procedure Section 664.6 by defendant and cross-complainant Dan F. Silveira is **DENIED**. The court **GRANTS** defendant's alternative request to set this matter for trial.

On a motion under Code of Civil Procedure, section 664.6, the court must determine whether the parties entered into a valid and binding settlement. (*Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182.) "A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms." (*Ibid.*) The court may consider the parties' declarations and other evidence in deciding what terms the parties agreed to. (*Ibid.*) If the court finds that the parties entered into an enforceable settlement, then the court should grant the motion and enter a formal judgment pursuant to the terms of the settlement. (*Id.*, at pp. 1182-1183.) However, while the court may receive evidence, determine disputed facts and enter the terms of a settlement agreement as a judgment, nothing in section 664.6 authorizes a judge to create the material terms of a settlement as opposed to deciding what terms the parties themselves previously agreed. (*Machado v. Myers* (2019) 39 Cal.App.5th 779, 790.)

On April 29, 2026, the parties appeared before the court and recited the terms of the settlement agreement orally on the record. (Slater Decl., exh. A, Court Transcript from April 29, 2026 hearing.) The stated terms were that plaintiff would pay defendant \$300,000, there would be a full mutual 1542 release, additional language would be added as necessary to release the Labor Code claims, and no confidentiality provision. (*Id.*, at pp. 5-6.) The parties would also enter into a written settlement agreement. (*Id.*, at p. 7.)

The parties now disagree about whether they reached an agreement on the material terms of the settlement. Defendant contends that everything stated orally on the record before the court constitutes the material terms of the settlement. Plaintiff however, claims that he believed the photographs and videos obtained during defendant's claimed work for cross-defendants would be returned as part of the settlement.

As set forth above, the court may receive evidence and determine disputed facts in ruling on this Motion. Plaintiff's declaration supports that he believed the photographs and videos during defendant's employment would be returned as part of the settlement, although it appears that this issue was not discussed at the settlement conference. (See Jin Decl., and exhs. 1-2.) On June 30, 2026, defendant has submitted an unsigned "proposed" supplemental declaration stating

“¶ 4. I do not intend to use any photographs, videos, GPS data, dive-location information, or other materials obtained from the SD card returned in February 2025 for any commercial purpose. ¶ 5. I have not sold, transferred, or licensed any information from the SD card returned in February 2025 to any third party for commercial purposes and will not do.” If a signed version of the declaration would resolve the dispute, then plaintiff is directed to so advise the court.

If the proposed declaration does not resolve the parties’ dispute over the settlement terms, a trial setting conference is set for July 22, 2026 at 9:00 a.m.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff’s counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 3**

23-CIV-05486

GERARDO LOPEZ, ET AL VS. PATRICIA PFEIFFER BEEBE

GERARDO LOPEZ
PATRICIA PFEIFFER BEEBE

DELANEY L. MILLER
TYRA M. MENDEZ

Plaintiff's Motion to be Relieved as Counsel (Gerardo Lopez)

TENTATIVE RULING:

The unopposed motion of Windsor Troy Law, LLP to be relieved as counsel of record for plaintiff Gerardo Lopez is **GRANTED**.